

Micro, Small And Medium Enterprises Development (Furnishing Of Information) Rules, 2009

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Union of India - Act

Micro, Small And Medium Enterprises Development (Furnishing Of Information) Rules, 2009

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Micro, Small And Medium Enterprises Development (Furnishing Of Information) Rules, 2009

Rule MICRO-SMALL-AND-MEDIUM-ENTERPRISES-DEVELOPMENT-FURNISHING-OF-INFORMATION-RULES-2009 of 2009

Published on 4 October 2009

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Micro, Small And Medium Enterprises Development (Furnishing Of Information) Rules, 2009

Published in the Gazette of India, Extra; Part 2, Section 3(i) dated 4th October, 2009.

1834.

G.S.R. 793 (E), dated 26th October, 2009. - In exercise of the powers conferred by clause (e) of sub-section (2) of Section 29 of the Micro, Small and Medium Enterprises Development Act, 2006 (

27 of 2006

), the Central Government hereby makes the following rules, namely :--

1.

Short title and commencement.

(1)

These rules may be called the Micro, Small and Medium Enterprises Development (Furnishing of Information) Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires----

(a)

"Act" means the Micro, Small and Medium Enterprises Development Act, 2006 (

27 of 2006

);

(b)

"Information" means any information as specified in Rule 3 and includes any document in hard copy or soft copy;

(c)

"Officer" means the officer appointed under sub-section (1) of Section 26 of the Act.

(2)

Words and expressions used in these rules and not defined but defined in the Act shall have the same meanings as assigned to them in the Act.

3.

Information.

- The officer may, for the purposes of the Act, by order require any person to furnish the following information, namely:

(a)

Investment in plant and machinery in the case of enterprises engaged in the manufacture of goods as specified in clause (a) of sub-section (1) of Section 7 of the Act; or

(b)

Investment in equipment in the case of enterprises engaged in rendering services as specified in clause (b) of sub-section (1) of Section of 7 of the Act.

4.

Furnishing of information to the officer.

(1)

The information shall be furnished to the officer in the Form annexed to these rules and sent by registered post or in person, as the case may be.

(2)

On receipt of information, it shall be duly registered and given a serial number.

(3)

The details of presentation and receipt of information shall be duly entered in the register maintained by the officer.

Form 4

(See Rule 4)

Form for information to be furnished for Assessment of Investment in Plant and Machinery or Equipment

1. Date and number of the order under which information is sought;

2. Name of the Enterprise;

3. Entrepreneurs, Memorandum Number and date;

4. Address of the Enterprise;

5.

Name of the Chief Executive or Director or Manager or Proprietor;

6.

Address of the registered office of the Company/Limited Liability Partnership Firm:

7.

The details of the information sought:

Sl.

No.

List

of plant and machinery or equipment installed

Month

and year of installation

Purchase

value item-wise (in Rs. lakhs)

Machinery

or equipment excluded for computation for definition purposes

Any

other information

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

8.

Any other relevant information, if any :

9.

List of enclosures :-

(1)

bill or Invoice or Cash Receipt (Self-certified) are enclosed as a proof of the value of machine or equipment mentioned in column (4) of Para 7,

(2)

document in support of column (5) of Para 7.

Declaration

I(Name in full in block letters), son/daughter/wife of Shrido hereby declare that the information and particulars in Paras 1 to 9 are true and correct to my best knowledge and belief and I have not suppressed any material facts relating thereto.

Place:

Date:

Signature of the Chief Executive/Director/Manager/Proprietor with seal

To,

()

Name of the Officer

Designation

Address

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